

House-Ad Template Brief — The Branded Creative Frame (Trade Dress)

Prepared for the owner and trademark counsel as part of the Trademarks packet. It explains the branded ad template, why it is **trade dress** (not a simple design mark), what to claim, and the realistic path to protection. **Not legal advice** — registrability and the filing are counsel's to determine, and trade dress in particular is a fact-specific, higher-bar question. Current as of 2026-09-11.

1. What the template is

The house-ad template is the consistent **branded “shell”** the platform stamps on **every ad and AI-generated creative**, across all three advertiser tiers (`ad-branding.ts` / `BrandedAd.jsx`). It is made of a small set of fixed brand elements arranged the same way every time:

- the **website-link bar** at the top (“getgoodsggratis.com”),
- the **“G³” watermark** behind the content,
- the **frame / overall layout**,

with the advertiser’s own creative dropped into the middle. Whatever product a given ad promotes, the *frame* makes it recognizable as coming from Get Goods Gratis. That consistent overall look is the thing this brief is about.

Two distinct assets — note for counsel (2026-09-11). The branded frame described here (**trade dress** — the overall look and arrangement) and the **“G³” design mark** (a standard design trademark, which is *also* the semi-transparent **watermark** stamped behind the ad) are **two separate IP assets on two separate filing tracks**, documented by two separate briefs: **this** brief for the frame/trade dress, and **WATERMARK-BRIEF** for the G³ mark. The frame *contains* the watermark but is **not** itself the watermark. The black-and-white USPTO drawing files are likewise separate: **AD-BRAND-FRAME-BW-USPTO.jpg** (this frame / trade dress) and **GGG-mark-BW-USPTO-900px-350dpi.jpg** (the G³ mark / watermark). *(This note was added after an image file was corrected from a “watermark” name to AD-BRAND-FRAME, to keep the two assets clearly distinct.)*

2. The filing drawing (USPTO-compliant, black-and-white)



House-ad brand template — pure black-and-white USPTO drawing

Pure black-and-white line drawing (no gray tones), grayscale format, within 250–944 px on every side, 350 DPI, under 5 MB. The AI-

generated disclosure label is deliberately excluded (it is regulatory, not brand). Source: `Black and White Images/AD-BRAND-TEMPLATE-BW-USPTO.jpg`.

3. Why this is *trade dress*, not a simple design mark

The logo, the slogan, and the watermark are ordinary marks — a design mark, a word mark, and the same design mark again. The **template is different**: you're not protecting a single graphic, you're protecting the **overall look and arrangement** applied across many different creatives. That is **trade dress**. Trade dress is protectable, but it must clear two bars the other marks don't:

- **Distinctiveness.** The look must identify *you* as the source. It is either **inherently distinctive** or it has acquired **secondary meaning** — i.e., consumers have come to associate that frame with your brand through use over time. A brand-new template usually leans on the *acquired* route, which takes time and evidence.
- **Non-functionality.** You cannot protect features that are functional (there for utility, not branding). The **placeholder creative area** is functional space and is *not* claimed; what you claim are the **branded elements** — the website-link bar, the "G³" watermark, and their arrangement/frame.

4. What to claim vs. exclude (for counsel)

- **Claim:** the website-link bar, the "G³" watermark, and the consistent frame/arrangement — the elements that signal source.
- **Exclude:** the advertiser-creative placeholder area (functional), and the AI-generated disclosure label (regulatory). The drawing above already excludes the disclosure label for this reason.
- Counsel should decide whether to pursue this on the **Principal Register** (needs inherent or acquired distinctiveness) or hold it until secondary meaning is demonstrable.

5. Why it's worth pursuing

It's the one asset that protects the *look of your entire ad output* without registering each image. The AI pipeline produces an open-ended stream of per-advertiser creatives — those aren't your marks and can't be registered — but the **frame stamped on all of them** can be, and protecting it stops a competitor from copying your recognizable ad presentation. It also builds on, and reinforces, the logo and watermark filings.

6. Filing considerations

- **Type:** trade dress / design mark (special form drawing above).
- **Class:** 35 (advertising / marketing services) is the natural home; counsel confirms.
- **Basis:** Intent-to-Use (1(b)) or Use (1(a)); **specimen** = real served ads showing the frame in commerce (the platform already stamps it, so specimens are easy to produce).
- **Distinctiveness evidence** (if the acquired route is needed): volume/duration of use, examples across advertisers, any recognition data — worth starting to keep now.

7. Honest priority note

Trade dress is a **higher bar and a slower road** than the word and design marks. **File the core marks first** — the **"Get Goods Gratis" word mark, the "G³" logo, and the slogan** — and treat the template as a **secondary, "counsel-to-assess" filing** that may need acquired distinctiveness to land. Do **not** hold up the core filings waiting on it. Keeping the template in consistent use now is exactly what builds the secondary meaning it will likely need later.

8. Cross-references

- `TRADEMARK-FILING-BRIEF.md` — marks table (row 6) and the "Recurring brand elements worth filing" section.
- `WATERMARK-BRIEF.md` — the "G³" watermark, the central brand element inside this frame.
- `Black and White Images/AD-BRAND-TEMPLATE-BW-USPTO.jpg` — the filing drawing.
- `BRAND-AND-TRADEMARK.md` — the brand reference.

Prepared for counsel. Not legal advice — trade-dress protection is fact-specific; whether this frame is distinctive and non-functional enough to register is the attorney's call.